UNIVERSITÄT GRAZ
UNIVERSITY OF GRAZ

223.114

Introduction to IT-Law

28 May 2026

On the use (and non-use) of IT and AI in Austrian (civil and commercial) state court proceedings

Christian Aschauer

Institute of Civil Procedure and Insolvency Law

Structure of the Lesson

- Overview of the Austrian justice system in civil and commercial matters
- The historic development of the use of legal tech in (civil and commercial) state court proceedings in Austria
- Introduction of digital registers
- Introduction of mandatory digital communication systems
- Introduction of the electronic court file
- Automated injunction proceedings
- Observations on the (non-)use of AI in civil and commercial proceedings

Overview of the Austrian justice system in civil and commercial matters

Case numbers for 2023 and 2024

GESCHÄFTSFÄLLE 2023 und 2024										
	Bezirksgerichte		Landesgerichte		Oberlandesgerichte		Oberster Gerichtshof		Staatsanwaltschaften Oberstaatsanwaltschaften Generalprokuratur	
	2023	2024	2023	2024	2023	2024	2023	2024	2023	2024
Zivilsachen	403 205	430 622	72 375	76 498						
Außerstreitsachen	612 436	625 073	16 363	15 430						
Grund-/Firmenbuch	554 386	544 315	23 116	24 877						
Exekutionssachen	815 413	844 400								
Insolvenzsachen	11 592	11 730	12 336	14 911						
Rechtsmittel in Zivilsachen			17 402	17 084	8 160	7 276	2 245	2 231		
Strafsachen	28 639	28 338	51 220	53 649					531 226	543 037
Rechtsmittel in Strafsachen			3 445	3 475	6 511	6 713	718	702	11 433	12 271
Revisorenregister (ab 2014)					100 444	103 275				
GESAMT (ohne Jv)	2 425 671	2 484 478	196 257	205 924	115 115	117 264	2 963	2 933	542 659	555 308
Justizverwaltungssachen	103 476	100 629	118 778	115 221	53 237	47 648	4 776	4 527	45 560	42 513
GESAMT (mit Jv)	2 529 147	2 585 107	315 035	321 145	168 352	164 912	7 739	7 460	588 219	597 821

Overview of the Austrian justice system in civil and commercial matters

- Ca. 12,883 staff, including 2,451 judges (2025)
- Supreme Court („*Oberster Gerichtshof*“) and 4 Court of Appeals („*Oberlandesgerichte*“) in Vienna, Graz, Linz and Innsbruck
- 20 Circuit Courts („*Landesgerichte*“) and 113 District Courts („*Bezirksgerichte*“)
- 1 specialised Commercial Court and 1 specialised District Court for Commercial Matters in Vienna („*Handelsgericht Wien*“ and „*Bezirksgericht für Handelssachen Wien*“)
- 1 specialised court for labour and social security law in Vienna („*Arbeits- und Sozialgericht Wien*“)

Overview of the Austrian justice system in civil and commercial matters

- Average duration of proceedings:

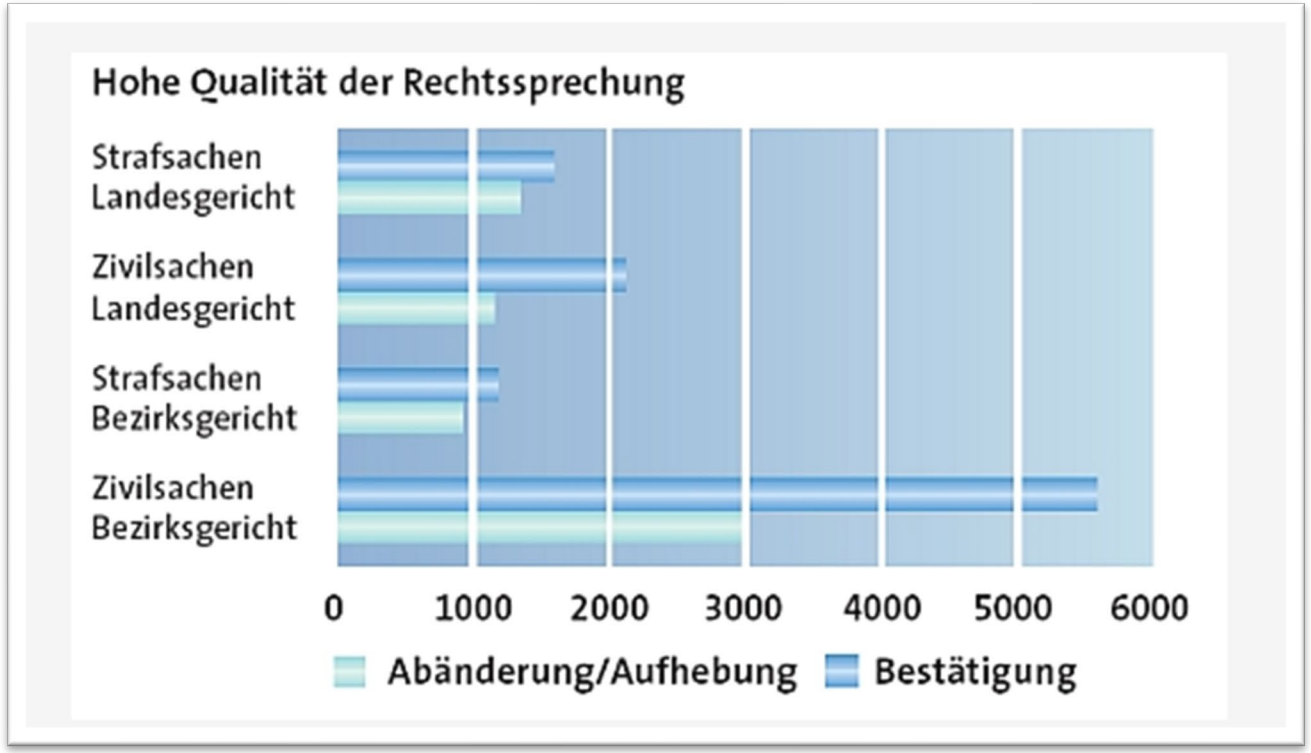
-civil case at district court (1st degree): 6 months

-civil case at circuit court: (1st degree): 13 months

-only ca. 2,3% of civil and commercial cases take more than 3 years

Overview of the Austrian justice system in civil and commercial matters

- Quality and acceptance of legal decisions



Overview of the Austrian justice system in civil and commercial matters

- Yearly budget (2025)

  -expenses of ca. EUR 2,3billion

  -ca. 55% of expenses generated by income, including court fees

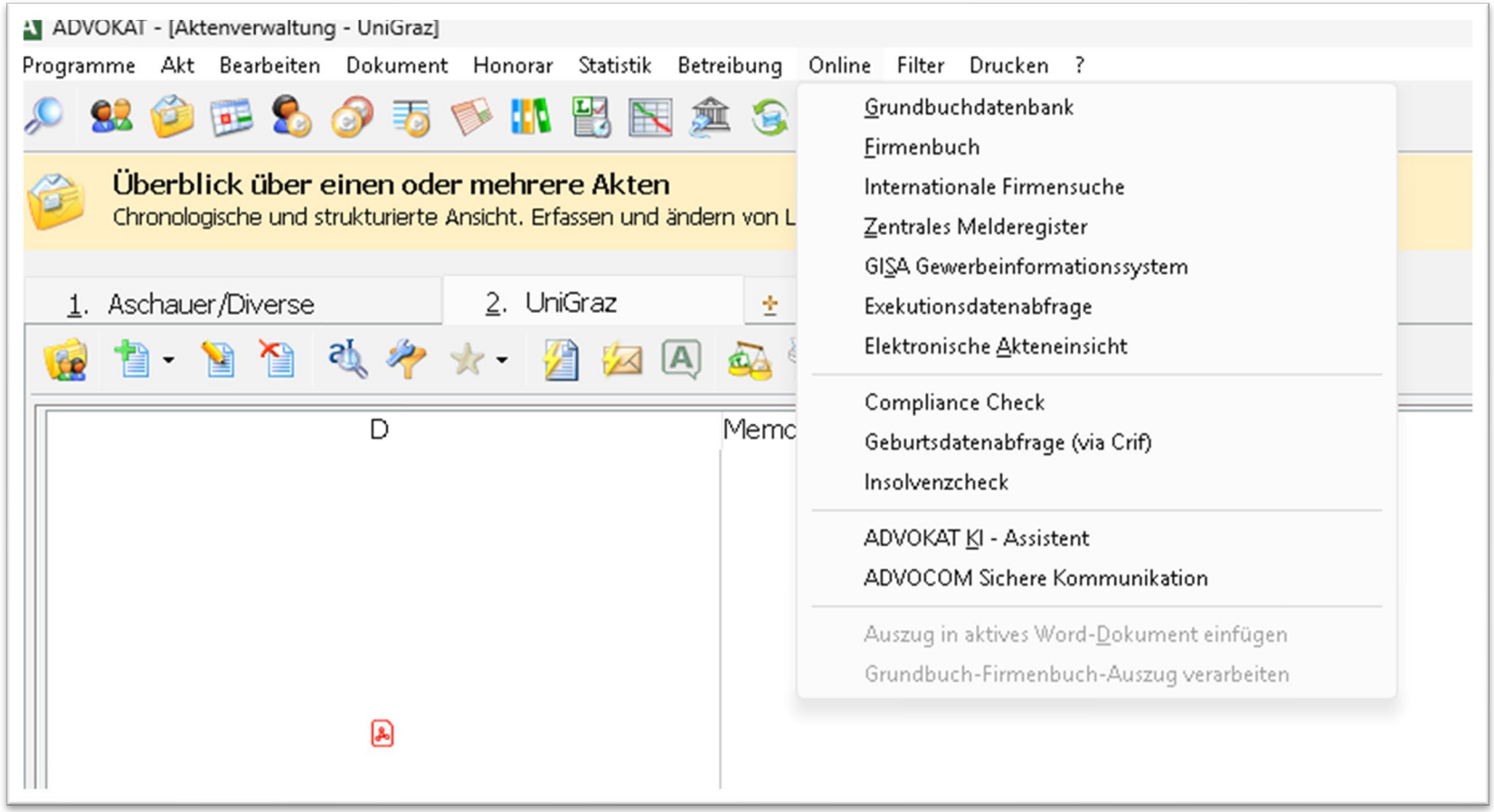
  -IT budget of ca. EUR 59.2million

The historic development of the use of legal tech in (civil and commercial) state court proceedings in Austria

- 1970ies: Introduction of electronic cadaster
- 1980ies: -1980 start of digitisation of the land register (without archive of documents) (*„Elektronisches Grundbuch“*)
  -1983 start of mandatory and automated injunction proceedings (*„automationsunterstütztes Mahnverfahren“*)
  -start of automation of civil and commercial proceedings
- 1990: start of roll-out of digital commercial register (*„Elektronisches Firmenbuch“*)
- 1990ies: start of the use of legal data bases (*„Rechtsinformationssystem Justiz“*)
- 2000: start of electronic publications in insolvency matters (*„Ediktsdatei“*)
- 2004: electronic register of certified experts and interpreters (*„Sachverständigen- und Dolmetschliste“*)
- 2005: electronic archive of documents (*„Urkundenarchiv“*)
- 2007: start of mandatory use of electronic communication by lawyers and public notaries (*„Elektronischer Rechtsverkehr“*)
- 2008: start of European Injunction proceedings (*„Europäisches Mahnverfahren“*)
- Since 2014: Justice 3.0 Initiative
- 2020: COVID19 and wider use of video-conferencing applications

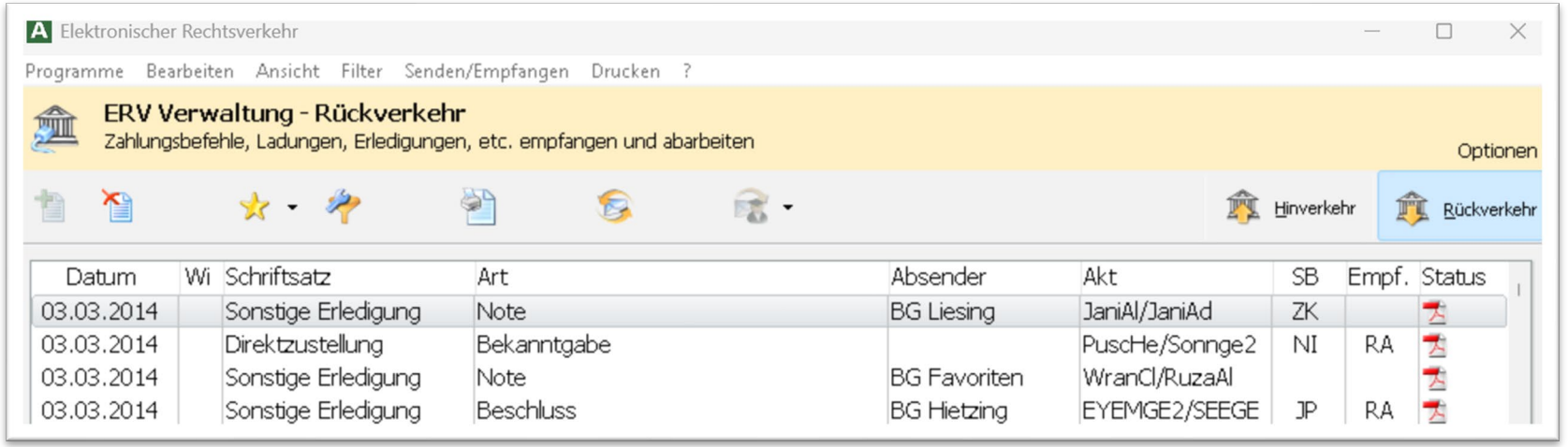
The historic development of the use of legal tech in (civil and commercial) state court proceedings in Austria

- Present status in the office of a lawyer



The historic development of the use of legal tech in (civil and commercial) state court proceedings in Austria

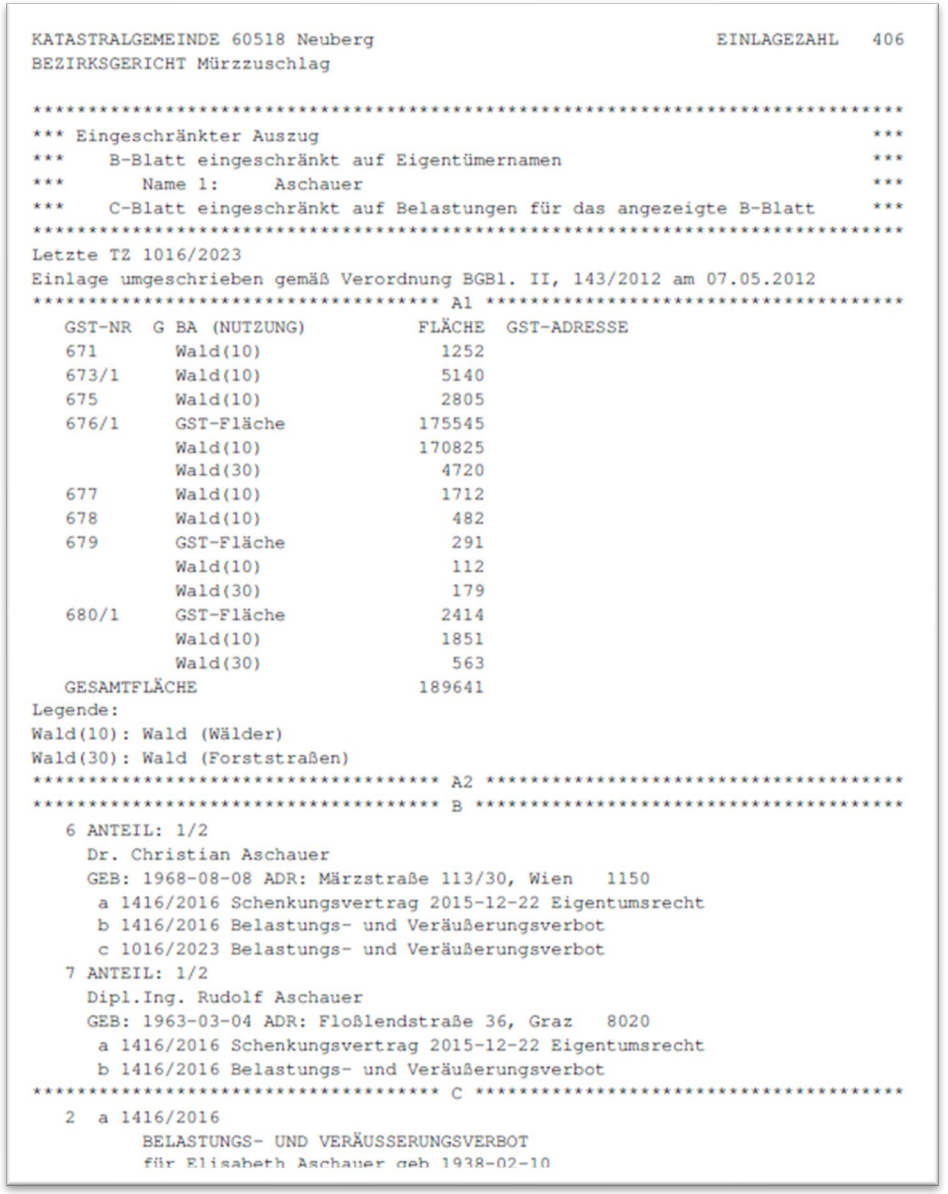
- Present status in the office of a lawyer



Datum	Wi	Schriftsatz	Art	Absender	Akt	SB	Empf.	Status
03.03.2014		Sonstige Erledigung	Note	BG Liesing	JaniAl/JaniAd	ZK		
03.03.2014		Direktzustellung	Bekanntgabe		PuscHe/Sonnge2	NI	RA	
03.03.2014		Sonstige Erledigung	Note	BG Favoriten	WranCl/RuzaAl			
03.03.2014		Sonstige Erledigung	Beschluss	BG Hietzing	EYEMGE2/SEEGE	JP	RA	

Electronic land register

- Example
- Accessible by anyone for a fee
- Access
  - via cadaster no.
  - via name – legal interest requirement
- Since 2007 electronic archive of documents – publicity of electronic documents
- Mandatory filing of documents via *„ERV“* („electronic legal communication“) by lawyers and public notaries

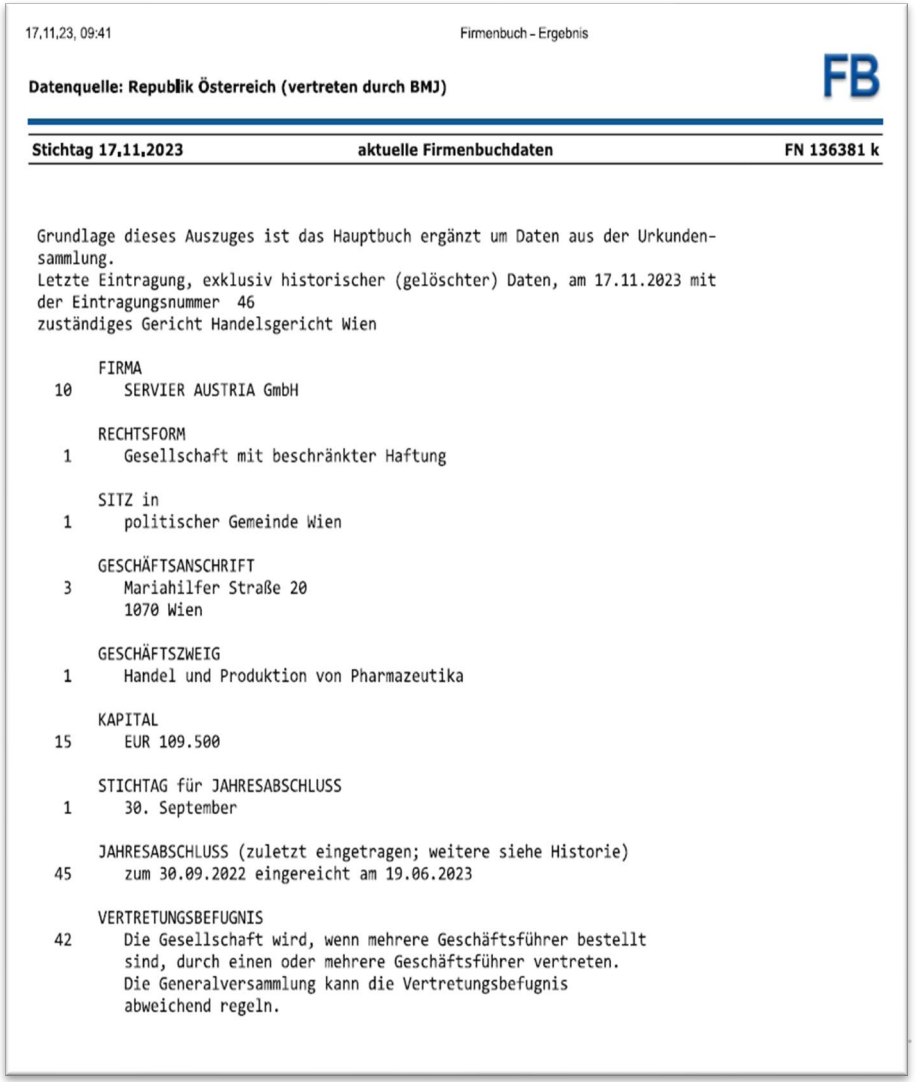


```
KATASTRALGEMEINDE 60518 Neuberg                                  EINLAGEZAHL   406
BEZIRKSGERICHT Mürzzuschlag

*****************************************************************************
*** Eingeschränkter Auszug                                                  ***
***    B-Blatt eingeschränkt auf Eigentümernamen                           ***
***       Name 1:     Aschauer                                             ***
***    C-Blatt eingeschränkt auf Belastungen für das angezeigte B-Blatt    ***
*****************************************************************************
Letzte TZ 1016/2023
Einlage umgeschrieben gemäß Verordnung BGBl. II, 143/2012 am 07.05.2012
************************************ A1 ************************************
   GST-NR  G BA (NUTZUNG)          FLÄCHE  GST-ADRESSE
   671       Wald(10)                1252
   673/1     Wald(10)                5140
   675       Wald(10)                2805
   676/1     GST-Fläche            175545
             Wald(10)              170825
             Wald(30)                4720
   677       Wald(10)                1712
   678       Wald(10)                 482
   679       GST-Fläche               291
             Wald(10)                 112
             Wald(30)                 179
   680/1     GST-Fläche              2414
             Wald(10)                1851
             Wald(30)                 563
   GESAMTFLÄCHE                    189641
Legende:
Wald(10): Wald (Wälder)
Wald(30): Wald (Forststraßen)
************************************ A2 ************************************
************************************ B ************************************
   6 ANTEIL: 1/2
     Dr. Christian Aschauer
     GEB: 1968-08-08 ADR: Märzstraße 113/30, Wien   1150
      a 1416/2016 Schenkungsvertrag 2015-12-22 Eigentumsrecht
      b 1416/2016 Belastungs- und Veräußerungsverbot
      c 1016/2023 Belastungs- und Veräußerungsverbot
   7 ANTEIL: 1/2
     Dipl.Ing. Rudolf Aschauer
     GEB: 1963-03-04 ADR: Floßlendstraße 36, Graz   8020
      a 1416/2016 Schenkungsvertrag 2015-12-22 Eigentumsrecht
      b 1416/2016 Belastungs- und Veräußerungsverbot
************************************ C ************************************
   2  a 1416/2016
         BELASTUNGS- UND VERÄUSSERUNGSVERBOT
         für Elisabeth Aschauer geb 1938-02-10
```

Electronic company register

- Example



17,11,23, 09:41 Firmenbuch – Ergebnis

Datenquelle: Republik Österreich (vertreten durch BMJ) FB

Stichtag 17,11,2023 **aktuelle Firmenbuchdaten** **FN 136381 k**

Grundlage dieses Auszuges ist das Hauptbuch ergänzt um Daten aus der Urkunden-
sammlung.
Letzte Eintragung, exklusiv historischer (gelöschter) Daten, am 17.11.2023 mit
der Eintragungsnummer 46
zuständiges Gericht Handelsgericht Wien

FIRMA
10 SERVIER AUSTRIA GmbH

RECHTSFORM
1 Gesellschaft mit beschränkter Haftung

SITZ in
1 politischer Gemeinde Wien

GESCHÄFTSANSCHRIFT
3 Mariahilfer Straße 20
1070 Wien

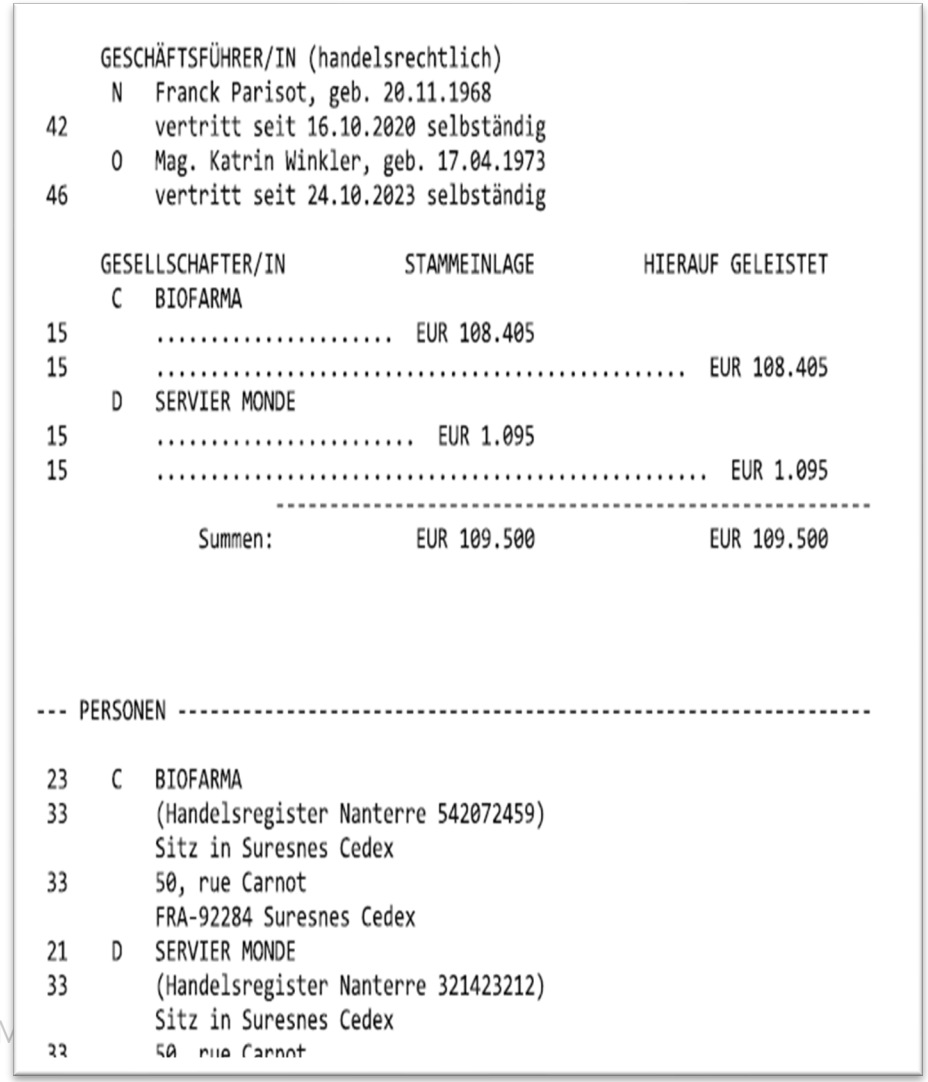
GESCHÄFTSZWEIG
1 Handel und Produktion von Pharmazeutika

KAPITAL
15 EUR 109.500

STICHTAG für JAHRESABSCHLUSS
1 30. September

JAHRESABSCHLUSS (zuletzt eingetragen; weitere siehe Historie)
45 zum 30.09.2022 eingereicht am 19.06.2023

VERTRETUNGSBEFUGNIS
42 Die Gesellschaft wird, wenn mehrere Geschäftsführer bestellt
sind, durch einen oder mehrere Geschäftsführer vertreten.
Die Generalversammlung kann die Vertretungsbefugnis
abweichend regeln.



GESCHÄFTSFÜHRER/IN (handelsrechtlich)
N Franck Parisot, geb. 20.11.1968
42 vertritt seit 16.10.2020 selbständig
O Mag. Katrin Winkler, geb. 17.04.1973
46 vertritt seit 24.10.2023 selbständig

	GESELLSCHAFTER/IN	STAMMEINLAGE	HIERAUF GELEISTET
	C BIOFARMA		
15		..... EUR 108.405	
15		.....	EUR 108.405
	D SERVIER MONDE		
15		..... EUR 1.095	
15		.....	EUR 1.095
	Summen:	EUR 109.500	EUR 109.500

--- PERSONEN ---

23 C BIOFARMA
33 (Handelsregister Nanterre 542072459)
Sitz in Suresnes Cedex
33 50, rue Carnot
FRA-92284 Suresnes Cedex
21 D SERVIER MONDE
33 (Handelsregister Nanterre 321423212)
Sitz in Suresnes Cedex
33 50, rue Carnot

Electronic company register

- Accessible by anyone for a fee
- Access to financial statements (to the extent they must be published by anyone for a fee)
- Mandatory filing of documents via *„ERV“* („electronic legal communication“) by lawyers and public notaries

Electronic publication of information about insolvency, enforcement and other proceedings („Edikte“)

- Example



Mandatory digital communication systems, mandatory injunction proceedings and the electronic file

- § 27 Abs. 1 ZPO (*„Zivilprozessordnung“* or civil procedure code): duty to be represented by lawyer in all matters before district courts above EUR 5,000 and before all higher courts
- § 89c Abs. 5 GOG (*„Gerichtsorganisationsgesetz“* or act on the organisation of the justice system“): duty of lawyers, public notaries, banks, insurance companies, social security administrations, etc., to communicate with the court via the electronic communication system established by the court (*„Elektronischer Rechtsverkehr“*)

Mandatory digital communication systems, mandatory injunction proceedings and the electronic file

- Payment of court fees: court fees must be collected by the lawyer and deposited on an escrow account, where they must be available on the day of the filing of the request (failing which the lawyer is liable for their payment); the court has access to the escrow account (*„Einzugsermächtigung“*) and orders the transfer of the court fees to its own account
- Exorbitant court fees in Austria, e.g. for payment claim of EUR 1million: 1st degree EUR 14,203; appeal EUR 24,071; appeal to Supreme Court EUR 32,096; no ceiling

Mandatory digital communication systems, mandatory injunction proceedings and the electronic file

- § 244 Abs. 1 and 2 ZPO: duty to start injunction proceedings in all matters relating to payment of amounts below 75,000 EUR unless the claim is
  - inadmissible;
  - manifestly unjustified;
  - not yet payable;
  - contingent upon counterclaim;
  - debtor residing abroad; or
  - action not available („unschlüssig“)

Mandatory digital communication systems, mandatory injunction proceedings and the electronic file

- Broad scope of application
- Request through standardised (electronic) form
- Transmission of the request to the competent court via electronic communication system („*ERV*“)
- Relevant case information is archiviated automatically
- Case is assigned to a court clerk operating under supervision of a judge

Mandatory digital communication systems, mandatory injunction proceedings and the electronic file

- Court clerk checks whether the application meets all legal requirements and issues payment injunction
- Payment injunction is processed automatically, printed in paper form and served on the debtor by courier
- Remedies of the debtor:
  - In district court proceedings (i.e. below EUR 15,000): Opposition (*„Einspruch“*) within 4 weeks, no reasons required for opposition; no lawyer required for the filing of the opposition
  - In circuit court proceedings (i.e. above EUR 15,000): Opposition within 4 weeks; the opposition must be filed by a lawyer and contain reasons
- If debtor files no opposition: the payment injunction becomes final and binding (*„res judicata“*) and can be used for enforcement
- Applicant automatically receives the enforceable instrument (*„vollstreckbarer Zahlungsbefehl“*)

Mandatory digital communication systems, mandatory injunction proceedings and the electronic file

- If opposition is filed in due time: start of regular court proceedings
- Duration from request up to the issuing of enforceable instrument: 6-7 weeks
- In 2022 313,620 injunction proceedings
  - before district court „opposition"-rate of 8%
  - before circuit court „opposition"-rate of 46%
  - in labour law matters „opposition"-rate of 41%

Enforcement proceedings

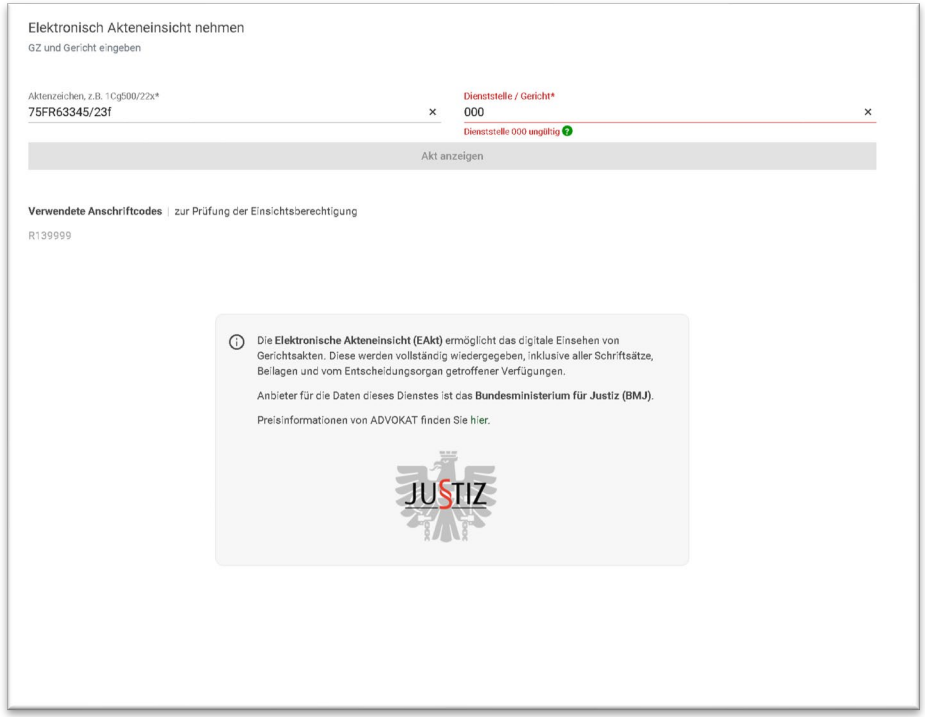
- Location of assets with the support of electronic company register and electronic land register
- § 427 EO (*„Exekutionsordnung“* or enforcement code): investigation in the register of enforcement cases
- § 295 Abs. 1 EO: automatic identification of the debtor‘s employer, provided that the birth date of the debtor is indicated; investigation in the data stored by the central organisation of all social security bodies (*„Dachverband der Sozialversicherungsträger“*)
- (Social media)

Enforcement proceedings

- § 54b EO: simplified procedure for enforcement against movable property where the enforceable amount is below EUR 50,000; useful if no risk that debtor might obstruct enforcement by alienating his or her assets;
- Duty of lawyers to use the standard form and to submit the same via the electronic communication system („ERV“)
- No need to produce enforceable instrument, but indication of the date at which enforceability was confirmed
- The case is assigned to a clerk working under the supervision of a judge
- The clerk checks whether the requirements are met and issues the enforcement order
- If enforceable instrument is lacking or does not cover enforcement: the debtor may file „opposition“ within 14 days

Electronic inspection of the file

- § 89i GOG: If file is kept electronically, parties and their lawyers may consult the file electronically (for a fee)
- Confidentiality of court files vs. public proceedings



Videoconferencing in civil and commercial cases pre- and post-pandemic

- Since 2005: the court may order that remote witnesses be examined by videoconference, rather than by a delegated judge (§ 277 ZPO)
- Since 2019: Videoconference (i) in order to hold the first (organisational) hearing; (ii) examine the parties; or (iii) discuss written expert reports (§ 132a ZPO); decision within the discretion of the judge; every party may object within a time limit to be indicated by the judge; parties can only suggest that hearing be held remotely

(Non-)Use of AI in civil and commercial proceedings

Interview with *Michael Kunz*, „Der Standard“ on 14 May 2025:

„Der Kernbereich der Entscheidungstätigkeit, nämlich Ermessensübung, Beweiswürdigung, Auslegung von Gesetzen muss aber der Richterschaft vorbehalten bleiben. Entscheiden und urteilen wird immer nur der Richter. […] Richter und Richterinnen hören zu, werten, denken und kommen dann zu einem Ergebnis.“

Interview with *Michael Kunz*, „Der Standard“ on 14 May 2025:

„The core of the decision-making process, i.e. the exercise of discretion, evaluation of evidence, interpretation of the law, must always remain the prerogative of human judges. Only human judges judge and adjudicate. […] Human judges listen, evaluate, think and come to a conclusion.“

(Non-)Use of AI in civil and commercial proceedings

Barriers against the use of AI rooted in the Austrian Constitution

- Art. 83 Abs. 2 B-VG (*„Bundes-Verfassungsgesetz“* or Act on the Constitution of the Federation): *„Nobody shall be deprived from his or her legal judge.“*
- Art 6 ECHR: “[…] everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law.”
- Art. 87 Abs. 1 B-VG: „In the exercise of their judicial mandate, judges are independent.“

(Non-)Use of AI in civil and commercial proceedings

Barriers against the use of AI rooted in European Law

- Annex III, no. 8, of High-Risk AI Systems referred to in Art. 6(2) EU AI Act:

  "8. Administration of justice and democratic processes:

  (a) AI systems intended to be used by a judicial authority or on their behalf to assist a judicial authority in **researching and interpreting facts and the law and in applying the law to a concrete set of facts**, or to be used in a similar way in alternative dispute resolution;"

(Non-)Use of AI in civil and commercial proceedings

Barriers against the use of AI rooted in European Law

- Carve-out in Art. 6(3) EU AI Act:

  "3. […] an AI system referred to in Annex III shall not be considered to be high-risk where it does not pose a significant risk of harm to the health, safety or fundamental rights of natural persons, including by **not materially influencing the outcome of decision making**. The first subparagraph shall apply where any of the following conditions is fulfilled:

  (a) the AI system is intended to perform a **narrow procedural task**;

  (b) the AI system is intended to **improve the result of a previously completed human activity**;

  (c) the AI system is intended to **detect decision-making patterns or deviations from prior decision-making patterns** and is not meant to replace or influence the previously completed human assessment, without proper human review; or

  (d) the AI system is intended to perform **a preparatory task** to an assessment relevant for the purposes of the use cases listed in Annex III."

(Non-)Use of AI in civil and commercial proceedings

- Ethical considerations relating to
  - Human dignity
  - Volume and nature of training data
  - Inherent bias of training data and perpetuation of bias
  - Lack of legal reasoning and sham reasoning
  - Leal realism vs. development of the law
  - Equity in decision making
  - No sense of human mortality

(Non-)Use of AI in civil and commercial proceedings

- Possible future developments
  - Probably decrease of case numbers
  - Faster proceedings
  - Cost savings?
  - New skills required for judges and lawyers
  - Reorganisation of courts and law firms
  - Challenges for the education of new generations of lawyers

Selected references to relevant literature

- *Aletras/Tsarapatsanis/Preoţiuc-Pietro/Lampos*, Predicting judicial decisions of the European Court of Human Rights: a Natural Language Processing perspective, PeerJ Computer Science 2:e93, DOI 10.7717/peerj-cs.93
- *Bull/Steffek*, Die Entschlüsselung rechtlicher Konflikte. Der Einsatz künstlicher Intelligenz zur Ermittlung von Entscheidungsfaktoren der Konfliktlösung, ZKM 2018, 165
- *Enders*, Einsatz künstlicher Intelligenz bei juristischer Entscheidungsfindung, JA 2018, 721
- *Fischer*, The Future of Construction Disputes: Legal Tech in Construction Disputes, in Roquette/Pröstler (Hsg), International Construction Disputes: A Practitioners' Guide (2022), 353-364.
- *Katz/Bommarito/Blackman*, A general approach for predicting the behavior of the Supreme Court of the United States, PLoS ONE 12(4): e0174698, DOI 10.1371/journal.pone.0174698

Selected references to relevant literature

- *Königshofer*, Künstliche Intelligenz zur Prognose zivilgerichtlicher Entscheidungen – Anwendungsszenarien und rechtliche Rahmenbedingungen (Diplomarbeit, Universität Graz 2021).
- *Medvedeva/Vols/Wieling*, Using machine learning to predict decisions of the European Court of Human Rights, Artificial Intelligence and Law 2020, 237
- *Paar*, Einsatz künstlicher Intelligenz in der Justiz, ÖJZ 2021, 213
- *Pasquale/Cashwell*, Prediction, Persuasion, and the Jurisprudence of Behaviourism, University of Toronto Law Journal 2018, Supplement 1, 63
- *Ruger/Kim/Martin/Quinn*, The Supreme Court Forecasting Project: Legal and Political Science Approaches to Predicting Supreme Court Decisionmaking, Columbia Law Review 2004, 1150
- *Susskind*, Online Courts and the Future of Justice (2019)